

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

With respect to medical, billing records and worker's compensation records sought, there is no disagreement that Plaintiff's statutorily (Evid. Code, § 990 et seq.) and Constitutionally (Cal. Const., art. I, § 1) recognized rights to maintain the privacy of her medical records is not waived in its entirety by the allegations she has made. (E.g., *Britt v. Superior Court* (1978) 20 Cal.3d 844, 862-864; Also, *In re Lifschutz* (1970) 2 Cal.3d 415; *Lantz v. Superior Court* (1994) 28 Cal.App.4th 1839, 1853-1857.) However, to the extent she has placed her physical condition in issue and claims that she has sustained injuries as a result of this alleged incident, she has given up the right to shield from the Defendant her medical records that reasonably relate to the claim she has asserted and for the disclosure of which there is a compelling need that outweighs the plaintiff's interest in preserving her privacy. (*Lantz v. Superior Court*, *supra*, at pp. 1854-1855, 1857.) If Plaintiff also claims that she has sustained additional injuries resulting in a worker's compensation claim that relate back to the slip and fall incident on September 10, 2020, the records relating to that claim are relevant as they are likely to lead to the discovery of admissible evidence in this case. Since there is a dispute concerning not only the extent of Plaintiff's injuries, but their causation, her contention that discovery must be limited to responses to interrogatories is a misunderstanding of the purpose of discovery.

After reviewing the papers submitted by counsel and plaintiff, and after applying the applicable statutory and decisional authority, the Court finds good cause to deny Plaintiff's Motion to Quash.

Ruling

Plaintiff Katherine Staudt Motion to Quash or limit records sought in a subpoena *duces tecum* served by Defendant Albertsons Safeway LLC on or about October 10, 2025 is **denied**. The 3rd parties subject to the subpoena *duces tecum* are ordered to produce the records sought within ten (10) days from the date of service of this order.

Defendant's counsel prepare and e-file a proposed order that conforms to this ruling no later than five (5) court days from the date of this hearing, attaching a copy of this tentative ruling.

5. 9:00 AM CASE NUMBER: C23-01402
CASE NAME: QUANTUM INTERNATIONAL LLC VS. DOES 1 TO 10
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: AMBERWOOD CONCORD HOMEOWNER'S ASSOCIATION
TENTATIVE RULING:

Having received no timely opposition, the demurrer is sustained with leave to amend.

6. 9:00 AM CASE NUMBER: C25-00261
CASE NAME: KIKI BROWS VS. RAMANUJAN GROUP LLC
*HEARING ON MOTION IN RE: CONSOLIDATION OF ACTIONS
FILED BY: BROWS, KIKI
TENTATIVE RULING:

Plaintiff Kiki Brows ("Plaintiff") brings the instant motion to consolidate in an effort to consolidate this matter (C25-00261), with a pending unlawful detainer action that was filed by defendant Ramanujan Group ("Defendant") in this same court (*Ramanujan LLC v Kawaldeep Singh Sethi individually and DBA Kiki Brows*, case no. N25-1537).

For the reasons set forth below, the motion to consolidate is **denied**.

Background

Plaintiff and its prior landlord entered into a lease agreement around June 14, 2013. (Motion to Consolidate, p. 3.) Those same parties amended the lease around December 2018. (Opposition, p. 3.) In October 2023, Plaintiff and Defendant (as successor in interest to the prior landlord), entered into a second amended lease extension, which extended the lease until November 2024. (Motion, p. 3; Opposition, p. 3.)

Plaintiff asserts that the lease was renewed once more, and that it made a minimum annual rent payment in reliance on that. (Motion, p. 4.) Defendant disputes this and asserts that it served a notice of termination of lease in March 2025, and that Plaintiff thereafter failed to surrender possession of the property. (Opposition, p. 3.)

On January 29, 2025, Plaintiff filed the initial complaint in this matter. On August 14, 2025, Plaintiff filed a first amended complaint, which asserts claims for breach of contract, fraud, and detrimental reliance. (Plaintiff's First Amended Complaint, ¶¶ 1-32.) On August 4, 2025, Defendant filed the unlawful detainer action. (Defendant's Unlawful Detainer Complaint, ¶¶ 1-19.)

Legal Standard

Code of Civil Procedure section 1048 provides, "When actions involving a common question or law or fact are pending before the court, it may order a joint hearing or trial of any or all of the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning